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25STCV34842 Sam Shaker v. Tarek Shaker, et al.

Tuesday, July 28, 2026

[TENTATIVE] ORDER SUSTAINING DEMURRER IN PART WITH LEAVE TO AMEND. (1746)

I. BACKGROUND

The complaint alleges that Plaintiff and Defendant, Tarek Shaker (Plaintiff's brother, Tarek), had an oral partnership agreement to share assets, income, business, and property. The parties also created Shaker Enterprises, an accounting, tax, and immigration services business, and agreed to buy real property in La Crescenta as partners. Plaintiff alleges that Defendant breached the partnership agreement and engaged in other unlawful conduct with respect to the partnerships.

Defendants demur to all causes of action on grounds of uncertainty, statute of frauds, standing, statute of limitations, and no jurisdiction over properties subject to ongoing Michigan and Honolulu Avenue properties.

II. LEGAL STANDARDS

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law.

(Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the complaint's sufficiency, the court must assume the truth of the properly pleaded factual allegations as well as facts that can be reasonably inferred from those expressly pleaded facts. The court may also consider matters properly subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.) Plaintiff is required to allege facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. Code Civ. Proc., § 430.10(e); (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1126.)

Sufficient facts are the essential facts of the case stated "with reasonable precision and with particularity that is sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) Whether the Plaintiff will be able to prove the pleaded facts is irrelevant. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.)

A demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing, they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).) A pleading is required to assert general allegations of ultimate fact. Evidentiary facts are not required. (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal. 4th 26, 47; Lim v. The.TV Corp. Internat. (2002) 99 Cal. App. 4th 684, 690.)

All that is required is to "set forth the essential facts of plaintiff's case with reasonable precision and with particularity sufficiently specific to acquaint defendant of the nature, source, and extent of the cause of action.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643–644.)

III. DISCUSSION

A.
UNCERTAINTY. Overrule.

Defendants contend Plaintiff must allege the specific terms of the alleged partnership, dates and amounts of contributions, how Plaintiff acquired title to real property, and any fiduciary duty owed to Martha.

Defendants do not cite any authority that requires Plaintiff to allege these specific facts for any cause of action stated. Demurrers for uncertainty are strictly construed, even where a complaint is in some respects uncertain, “because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) Plaintiff does not have to allege evidentiary facts.

B. STATUTE
OF FRAUDS. Overrule.

Defendants argue that the oral partnership is unenforceable under the statute of frauds. Under the statute of frauds contracts for the sale of real property or for an interest therein is invalid. (Civ. Code, § 1624.)

The oral partnership was to jointly build financial, business, and real estate assets. (Complaint, ¶ 18.) Plaintiff contributed funds to acquire 3612 Encinal Ave., La

Crescenta Area, Glendale, CA 91214. (Complaint, ¶ 24.) Plaintiff claims 50 percent interest in the property arising from Plaintiff’s contribution of $100,000 towards the down payment. (Complaint, ¶ 51.) Plaintiff requests a judicial determination to quiet title in his favor and confirm his 50 percent.

Defendants contend that Plaintiff cannot prove his claim to the real property because the agreement to hold jointly hold interests in real property was not in writing. A demurrer tests the legal sufficiency of the allegations. It does not test their truth, the Plaintiff's ability to prove them, or the possible difficulty in making such proof. (Saunders v. Superior Court (1994) 27 Cal.App.4th 832, 840).

Plaintiff is claiming an interest in the real property by virtue of the fraud claim, namely that Defendant falsely represented that they would each own a 50 percent interest in all assets. (Complaint, ¶ 28.) Plaintiff claims lost ownership interests in the real property and equitable interest. The fact that the partnership agreement is not in writing does not invoke the statute of frauds. Moreover, the breach of agreement does not concern solely the interest in real property. Rather, the parties agreed to share income, assets, and business profits. Whether Plaintiff can prove he holds an interest in real property is only a part of the contract claim. Demurrer does not lie to a part of a cause of action. (Kong v. City of Hawaiian Gardens Redevelopment Agency
(2002) 108 Cal.App.4th 1028, 1047 ["a demurrer cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy."].)

Defendants' contention that Plaintiff was not a partner, but an independent contractor is an assertion that arises from facts outside the complaint. Defendants contention that Plaintiff is not entitled to equitable interests since he had access to all financial information. Again, this argument goes to proof of only a part of the contract claim, neither of which is appropriate at the demurrer stage.

C.
FRAUD. Sustain.

Defendants argue that the fraud claim is not alleged with specificity, and the alleged facts do not support the element of justifiable reliance since Plaintiff had access to all information. The latter argument does not have merit because it depends on facts outside the pleading. However, the claim is not alleged with specificity.

A claim for fraud requires facts to support the following elements: (1) a misrepresentation, (2) made with knowledge of its falsity, (3) Defendant intended to defraud Plaintiff, i.e., induce Plaintiff’s reliance, (4) Plaintiff justifiably relied on the misrepresentation, (5) causing damage. (Nagy v. Nagy (1989) 210 Cal.App.3d 1262, 1268.)

Fraud claims are subject to strict requirements of particularity in pleading. (Id.) The particularity requirements necessitate pleading facts showing “how, when, where, to whom, and by what means the representations were tendered." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) The requirement “applies not only to the alleged misrepresentation, but also to the elements of causation and damage." (Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 776.)

Plaintiff identifies the alleged statements, but not “how, when, where, to whom, and by what means the representations were tendered." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73; (Complaint, ¶ 28.)

D. STANDING.
Overrule.

Defendants argue that Plaintiff has not alleged any recorded interest, deed, or chain of title. This argument is focused only Plaintiff’s alleged entitlement to an interest in the real property and is improper as noted above. As Plaintiff argues, Plaintiff’s claim to an equitable interest is not based only on the partnership agreement but on the fraud claim, if alleged with more specificity can support Plaintiff’s alleged real estate interest.

Defendant cites Fahy v. Dragon (2004) 124 Cal.App.4th 577, 584 which does not exist by name or by that citation.

E. ELDER ABUSE. Sustained

Defendants argue that Plaintiff is not an elder and cannot assert claims on behalf of his mother. The fifth cause of action asserts elder abuse on behalf of Plaintiff's mother who is an elder. Plaintiff's mother is not a named plaintiff.

F. IDENTITY THEFT. Overrule.

Defendants argue Plaintiff must allege facts to support statutory prerequisites. "Identity theft" means the unauthorized use of another person's personal identifying information to obtain credit, goods, services, money, or property. (Civ. Code, § 1798.92.) This claim is not alleged on behalf of Plaintiff's mother. Plaintiff alleges Defendants used Plaintiff's social security number and other information to obtain credit in Plaintiff's name which Plaintiff did not authorize. (Complaint, ¶¶ 41-44.)

Defendants do not cite any authority that requires an allegation that Plaintiff filed a police report or provided written notice to creditors. The elements of identity theft include: (1) that the person willfully obtain personal identifying information belonging to someone else; (2) that the person use that information for an unlawful purpose; and (3) that the person who uses the identifying information does so without the consent of the person whose personal identifying information is being used." (People v. Sanders (2018) 22 Cal.App.5th 397, 405.) The claim is adequately alleged.

G. CORPORATE DERIVATE CLAIMS. Sustained.

Defendants argue that Plaintiff does not allege shareholder status, a pre-suit demand to the board, and facts showing demand futility. A claim for a derivative action must contain allegations that the plaintiff shareholder first informed the directors of the ultimate facts of each cause of action and made a reasonable effort to induce them to commence suit themselves or otherwise redress the wrong, or allegations establishing that such efforts would have been futile or useless. (Grosset v. Wenaas (2008) 42 Cal.4th 1100, 1107 fn. 4.)

Plaintiff does not cite any authority for his arguments.

Plaintiff must allege he was a shareholder and allege with specificity of "plaintiff's efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that plaintiff has either informed the corporation or the board in writing of the ultimate facts of each cause of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file.” (Corp. Code, § 800.)

H. ACCOUNTING.
Overrule.

Contrary to Defendants’ argument, Plaintiff has alleged a fiduciary or contractual duty to duty to account. Traditional examples of fiduciary relationships in the commercial context “include trustee/beneficiary, directors and majority shareholders of a corporation, business partners, joint adventurers, and agent/principal.” (Wolf v. Superior Court (2003) 107 Cal.App.4th 25, 30.) Plaintiff alleges a partnership relationship.

I. STATUTE OF LIMITATIONS. Overrule.

In order for the court to sustain demurrer to the complaint based on a statute of limitations defect, “the defect must clearly and affirmatively appear on the face of the complaint… . A demurrer will not lie where the action may be but is not necessarily barred.” (Citizens for a Responsible Caltrans Decision v. Department of Transportation (2020) 46 Cal.App.5th 1103, 1117; Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1398.)

Defendants argue that delayed discovery does not apply because Plaintiff, as a CPA with full access to all records, was “not reasonably ignorant.” (Dem 6:23-24.) This argument alleges facts outside the pleading and goes to the Plaintiff’s ability to prove the claim which is not a proper issue to resolve at the demurrer stage.

J. NO JURISDICTION OVER “HONOLULU AVENUE” AND “MICHIGAN” PROPERTIES. Overrule.

Defendants argue that these properties are marital assets subject to ongoing Michigan divorce proceedings, citing In re Marriage of Elali & Marchoud (2022) 79 Cal.App.5th 668.

That case held that the validity of a marriage is determined by the law of the jurisdiction where the marriage occurred. It does not apply. There are no facts alleged about the location of the real property. Defendants do not request judicial notice of facts pertaining to a divorce proceeding.

Defendant's request for judicial notice of an unlawful detainer action is DENIED. Whether or not the Plaintiff does not have a documentary basis for her claims goes to the issue of proof.

K.

CONSTRUCTIVE TRUST. Overruled.

Defendant argues this is a remedy, not a cause of action citing Katz v. Chevron Corp. (2013) 221 Cal.App.4th 755, 766. The pinpoint citation does not exist. The case does not discuss constructive trusts.

Even if constructive trust is a remedy, Plaintiff can allege facts to support entitlement to this remedy. Pleading requirements are: (1) facts constituting the underlying cause of action, and (2) specific identifiable property to which defendant has title. (Michaelian v. State Comp. Ins. Fund (1996) 50 Cal.App.4th 1093, 1114.)

Plaintiff alleges that pursuant to the partnership agreement, Plaintiff was to have a 50 percent beneficial interest in real property. Plaintiff identifies the real property.

L.

CIVIL HARASSMENT. Sustained.

Plaintiff alleges Defendants harassed Plaintiff and requests order requiring no harassment, no intimidation or threats, and that Defendants' dogs remain leashed. Plaintiff does not address the argument. Civil Code 527.6, under which Plaintiff brings this claim state the pre-requisites for obtaining a restraining order.

M.

CLAIMS AGAINST MARTHA MORANDO. Overruled.

The Court gleans from this two sentence argument, that there is no basis for liability against her. Plaintiff alleges that the Glendale property is held in her name only. (Complaint, ¶13.) She is named in the complaint because Plaintiff wants to quiet title against her. She is the only party alleged to hold an interest adverse to Plaintiff's. (Complaint, ¶ 24, 47.) Funds were transferred to her. (Id.) Plaintiff alleges that these transactions were unauthorized.

IV. CONCLUSION

Based on the foregoing, demurrer is sustained in part only as to the following:

(3) fraud;
(5) elder financial abuse, (9) derivative claims, (12) civil harassment injunction.

In all other respects, demurrer is overruled.

Plaintiff is granted 30 days leave to amend.